

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
PATRICK CATANIA, NEIL CATANIA and
PAMELA CATANIA,

Plaintiffs,

Index No.:

SUMMONS

-against-

**Plaintiff's basis for venue
is Defendant's place of
business.**

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and JUSTIN ELLIS, in his individual and
official capacities,

Defendants.

-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action
and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve
a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this
summons, exclusive of the day of service (or within 30 days after the service is complete if this
summons is not personally delivered to you within the State of New York); and in case of your
failure to appear or answer, judgment will be taken against you by default for the relief
demanded in the complaint.

Dated: New York, New York
January 15, 2021

THE CLANCY LAW FIRM, P.C.

_____/s/_____
DONNA H. CLANCY, ESQ.
40 Wall Street, 61st Floor
New York, New York 10005
(212) 747-1744
*Attorneys for Plaintiffs Patrick Catania,
Neil Catania and Pamela Catania*

TO: THE CITY OF NEW YORK
Office of the New York City Controller
1 Centre Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

JUSTIN ELLIS
2100 Stirrup Path
Seaford, New York 11783

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
PATRICK CATANIA, NEIL CATANIA and
PAMELA CATANIA,

Plaintiffs,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and JUSTIN ELLIS, in his individual and
official capacities,

JURY TRIAL DEMANDED

Defendants.

-----X
Plaintiffs, PATRICK CATANIA, NEIL CATANIA and PAMELA CATANIA, by and
through their attorneys, The Clancy Law Firm, P.C., complaining of the Defendants THE CITY
OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and JUSTIN ELLIS, in his
individual and official capacities, upon information and belief, and at all times hereinafter
mentioned, allege:

INTRODUCTION

1. On October 25, 2019, Plaintiff PATRICK CATANIA was shot in the chest by a New
York City Police Department Sergeant, Defendant JUSTIN ELLIS in the course of his duties in
total disregard of Plaintiff PATRICK CATANIA's life. Despite knowledge of an excessive
number of civilian complaints and prior lawsuits filed against Defendant ELLIS for assault and
misuse of deadly and/or excessive force, Defendants THE CITY OF NEW YOK and NEW
YORK CITY POLICE DEPARTMENT continued to employ Defendant JUSTIN ELLIS and
failed and refused to discipline him. For the last two decades or longer, Defendants THE CITY

OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT have permitted, condoned and encouraged a culture where Police Officers with known propensities to commit violence and/or violate the New York City Police Department's rules and regulations prohibiting deadly physical force "unless they have probable cause to believe they must protect themselves...from imminent death or serious physical injury."¹ The New York City Police Department's Patrol Guide requires Police Officers to "use only the minimal amount of force necessary to protect human life."²

2. As a result of Defendants' individual and/or collective negligence and/or intentional conduct, Plaintiff PATRICK CATANIA suffered a near fatal injury requiring emergency surgery to remove the bullet from his chest, extensive hospitalization, rehabilitation, excruciating pain, suffering, post-traumatic stress syndrome, depression, anxiety and other permanent debilitating injuries. Plaintiffs NEIL CATANIA and PAMELA CATANIA are the parents of Plaintiff PATRICK CATANIA and assert claims of negligent infliction of emotional distress and loss of services and other economic damages for the Defendants' misconduct.

3. Plaintiff PATRICK CATANIA files this civil action for monetary damages for police brutality, misuse of deadly force, misconduct, assault, battery, personal injury, physical and emotional abuse, intentional infliction of emotional distress, negligence, negligence *per se*, *respondeat superior*, vicarious liability, negligent hiring, training, supervising and retention and negligent infliction of emotional distress against Defendants.

4. This action is further brought to vindicate the human and civil rights of Plaintiff PATRICK CATANIA and others similarly situated, who have been victimized by Defendants' blatant violations of their legal duty to protect their citizens. Plaintiffs contend that Defendants

¹ 2014 NYPD PATROL GUIDE, USE OF FORCE [PROC. NO.] 203-11 (Effective Aug. 1, 2013).

² Id.

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and JUSTIN ELLIS had a legal and/or special duty to protect Plaintiff's human and civil rights and breached that duty by failing to protect him against their Police Officer's misuse of deadly and/or excessive force in accordance with their NYPD rules. Defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT were thus negligent in hiring, training, supervising, retaining and disciplining their New York City Police Department Officers and in particular, Defendant ELLIS, causing Plaintiffs' serious bodily injuries, emotional distress and permanent harm.

PARTIES

5. Plaintiff PATRICK CATANIA resides in the County of Nassau, State of New York.
6. Plaintiff NEIL CATANIA resides in the County of Nassau, State of New York and is the father of Plaintiff PATRICK CATANIA and is the husband of Plaintiff PAMELA CATANIA.
7. Plaintiff PAMELA CATANIA resides in the County of Nassau, State of New York and is the mother of Plaintiff PATRICK CATANIA and is the wife of Plaintiff NEIL CATANIA.
8. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the City and State of New York.
9. Defendant NEW YORK CITY POLICE DEPARTMENT, (hereinafter "NYPD") was and still is a municipal agency duly organized and existing under and by virtue of the laws of the City of Seaford and State of New York.
10. Upon information and belief, at all times mentioned, Defendant JUSTIN ELLIS (herein "ELLIS") was a Defendant NYPD Police Officer with the rank of Sergeant employed by Defendants CITY and NYPD at the 101st Precinct in the Borough of Queens, New York and at all times was acting in such capacity as the agent, servant and employee of Defendants.

11. On or about January 10, 2020, Plaintiff PATRICK CATANIA caused a Notice of Claim and Intention to Sue to be served upon Defendants; and that said Notice was served within (90) days from the date of the occurrence which is the subject matter of this action.

12. On or about January 10, 2020, Plaintiff NEIL CATANIA caused a Notice of Claim and Intention to Sue to be served upon Defendants; and that said Notice was served within (90) days from the date of the occurrence which is the subject matter of this action.

13. On or about January 10, 2020, Plaintiff PAMELA CATANIA caused a Notice of Claim and Intention to Sue to be served upon Defendants; and that said Notice was served within (90) days from the date of the occurrence which is the subject matter of this action.

14. More than thirty (30) days have elapsed since the presentation of the Notice of Claims; the claims remain unadjusted, uncompromised, unpaid and unsettled; and that Defendants have wholly failed, omitted, neglected and refused to make any adjustment, compromise, payment or settlement thereof.

15. Defendant CITY has not conducted oral examinations of Plaintiffs PATRICK CATANIA, NEIL CATANIA and PAMELA CATANIA pursuant to §§ 50-e and 50-h of the General Municipal Law.

16. This action is being commenced within (1) year and ninety (90) days from the date of the occurrence, which is the subject matter thereof.

BACKGROUND/LITIGATION HISTORY

17. Over the past two decades, legal claims and civil lawsuits against Defendants CITY and NYPD have skyrocketed. Between 2010 and 2015 more than 15,000 lawsuits were filed against Defendants CITY and NYPD resulting in a 44% increase in total number of lawsuits costing Defendant CITY over \$200,000,000.³

18. In 2015, the Office of Inspector General issued a Report and recommendation to reduce police misconduct including the following three recommendations:

- 1) the NYPD should perform a qualitative review of the most recent relevant data contained within legal claims and lawsuits against the NYPD. Such information should include subject police officers, their rank, experience, precinct and prior complaints associated with officers named as defendants in lawsuits, the number and result of complaints made to the Civilian Complaint Review Board or the Internal Affairs Bureau against individual officers who may require specialized attention, training and/or discipline;
- 2) the NYPD should create an interagency working group between NYPD, the Comptroller's Office and the New York City Law Department to improve their police-involved data collection, coordination and exchange. The purpose of the interagency working group would allow NYPD to improve officer performance and agency practices, which would reduce the number of excessive use of force lawsuits against NYPD; and
- 3) the NYPD should provide the public with details about NYPD's early intervention system and its litigation data analysis team and solicit suggestions for further development. Essentially, the OIG-NYPD recommended that the NYPD increase the

³ NYC Department of Investigation, The Office of the Inspector General for the NYPD (OIG-NYPD).

transparency of its infrastructure for litigation data analysis, with the ultimate goal of preventing Police Officer misconduct.⁴

19. In the OIG-NYPD First Annual Report of March 2015, the OIG-NYPD's recommendations for discipline were to increase coordination and collaboration between the NYPD and CCRB to refine the disciplinary system for improper uses of force to ensure that Officers are held accountable for substantiated violations of the Patrol Guide's use of force policy. Although the Police Commissioner has sole and final authority to determine discipline, NYPD's process for determining the appropriate level of discipline should be non-arbitrary, consequential, consistent, predicably and transparent. The OIG-NYPD's second recommendation was to provide transparency with respect to the Police Commission's disciplinary decisions. The third recommendation expanded the Internal Affairs Bureau's access to newly filed complaints and substantive information on use of force cases filed with CCRB. The fourth recommendation was to improve information sharing and case tracking for cases that are outsourced to borough and precinct investigators via the Office of the Chief of Department and the Investigative Review Section.⁵

⁴ The Office of the Inspector General for the NYPD (OIG-NYPD) is a new oversight office charged with investigating, reviewing, studying, auditing and making recommendations relating to the operations, policies, programs and practices of the New York City Police Department (NYPD). The goals of OIG-NYPD are to enhance the effectiveness of the police department, increase public safety, protect civil liberties and civil rights, and increase the public's confidence in the public force, thus building stronger police-community relations. OIG-NYPD is part of the New York City Department of Investigation and is independent of NYPD. The New York City Department of Investigation (DOI) is one of the oldest law-enforcement agencies in the country and is New York City's corruption watchdog. DOI investigations may involve any agency, officer, elected official, or employee of the City, as well as those who do business with or receive benefits of the City. DOI's strategy attacks corruption comprehensively, through systemic investigations that lead to the high-impact arrests, preventive internal controls, and operational reforms that improve the way the City runs.

⁵ The full text of the recommendations are in the published Report, which is available at www.nyc.gov/html/oignypd.

20. Upon information and belief, Defendants failed to implement the OIG-NYPD aforementioned recommendations and/or failed to create, implement and/or enforce a hiring, training, retention and/or discipline system that properly prevents NYPD Police Officers' excessive and/or deadly force used against civilians.

21. On or about October 1, 2015, the New York City Department of Investigation Office of the Inspector General for the NYPD (OIG-NYPD) issued, "Police Use of Force in New York City: Findings and Recommendations on NYPD's Policies and Practices" expounding the following NYPD Patrol Guide Procedures Regarding Force:

"PATROL GUIDE §203-11 Use of Force

Patrol Guide §203-11 provides that all uniformed members of service are 'responsible and accountable for the proper use of force under appropriate circumstances.' Patrol Guide §203-11 further permits officers to use. The "amount of force necessary to overcome resistance...to effect an arrest or take a mentally ill or emotionally disturbed person into custody."⁶

PATROL GUIDE §203-11 DEADLY PHYSICAL FORCE

Patrol Guide §203-11 acknowledges that deadly physical force is the most serious act that an officer can engage in. The procedure states that officers "should use only the minimal amount of force necessary to protect human life." Officers cannot use deadly force "unless they have probable cause to believe they must protect themselves or another person present from imminent death or serious physical injury."⁷

22. At all relevant times, Defendants employed its Police Officers, personnel, staff, and Administrators, Including, and in particular, Defendant ELLIS.

23. At all relevant times, Defendants had knowledge of Defendant ELLIS's propensities toward intentional, negligent, careless, and/or reckless conduct, use of deadly force, assault and other misconduct and/or should have known of such vicious propensities had Defendants

⁶ 2014 NYPD PATROL GUIDE, USE OF FORCE [PROC. NO.] 203-11 (Effective Aug. 1, 2013).

⁷ 2014 NYPD PATROL GUIDE, DEADLY PHYSICAL FORCE [PROC. NO.] 203-12 (Effective Aug. 1, 2013).

implemented and/or maintained adequate hiring and/or screening procedures and/or supervision, retention and/or discipline policies.

24. Despite multiple civilian complaints against Defendant ELLIS Defendants CITY and NYPD negligently promoted Defendant ELLIS to Sergeant at the 101st Precinct in Queens, New York in 2018. Defendants negligently promoted and retained Defendant ELLIS after a multitude of complaints were filed against him. For example, in 2011, Defendant ELLIS was individually named in a lawsuit in the United States District Court for the Eastern District of New York for either directly participating in or failing to intervene in and the excessive use of force involving the unlawful physical assault and battery of plaintiff, Maynard Archer, an African American male, who was punched in the face by an NYPD police officer while handcuffed in the back seat of a police vehicle on August 5, 2011.⁸

25. In June 2013, plaintiff Christian Cepeda brought suit against The City of New York and Police Officer Justin Ellis, in his individual capacity, for violating his constitutional rights by illegally arresting him and the excessive and unjustified use of force upon Mr. Cepeda.⁹

26. To date, Defendant ELLIS, as an NYPD Police Officer, has 24 allegations of misconduct and 8 civilian complaints made against him. A total of 5 of the allegations against him were substantiated which means the alleged conduct occurred and violated the NYPD's rules.

27. Defendant ELLIS has received discipline on only two occasions for his misconduct, both "Command Discipline B." There are two types of Command Disciplines, Schedule A and Schedule B, Schedule B being the more serious of the two. This Discipline is recommended for a

⁸ *Maynad Archer v. City of New York, et al.*, Docket No.: 12-cv-3979 (CBA) (RER). This case was settled in the amount of \$175,000.

⁹ *Christian Cepeda v. The City of New York, et al.*, Docket No. 1:13-cv-03350 (FB) (LP). This case was settled in the amount of \$25,000.

police officer's misconduct that is more problematic than poor training, but does not rise to the level of Charges. An officer can lose up to 10 vacation days as a result of a Command Discipline.¹⁰

28. Upon information and belief, Defendant ELLIS had not been suspended from his Employment prior to the dated of alleged incident herein.

FACTS

29. On or about October 25, 2019, at approximately 12:00 a.m., Plaintiff PATRICK CATANIA, age 30, unarmed, was walking to his vehicle parked on Stirrup Path in the town of Seaford, State of New York.

30. On or about October 25, 2019, at approximately 12:00 a.m., Plaintiff PATRICK CATANIA was physically assaulted and battered by Defendant ELLIS.

31. On or about October 25, 2019, at approximately 12:00 a.m., Defendant ELLIS assumed a kill stance and intentionally fired two gunshots aimed at Plaintiff PATRICK CATANIA striking Plaintiff once in the chest.

32. At that time and place, Defendant ELLIS used deadly and/or excessive force against Plaintiff PATRICK CATANIA.

33. On or about October 25, 2019, two 911 emergency telephone calls were made, one able to be made by Plaintiff PATRICK CATANIA and a second 911 call made by Defendant ELLIS to report the incident, although he failed and/or refused to render aid to Plaintiff PATRICK CATANIA.

¹⁰ <https://projects.propublica.org/nypd-ccrb/officer/27953-justin-ellis>

34. Defendant ELLIS's use of deadly force was excessive under the circumstances and in violation of the NYPD Patrol Guide causing Plaintiff to suffer severe bodily injuries, including, but not limited to, a gunshot wound his chest inches from his heart, multiple lacerations and bruises to his chest.

35. Defendant ELLIS failed to follow the Defendant NYPD's Patrol Guide to use only deadly force in the amount necessary to protect human life and unless they have probably cause to believe they must protect themselves from imminent death or serious physical injury.

36. As a result of the Defendants' acts, Plaintiff PATRICK CATANIA required emergency surgery, was hospitalized for approximately one week and suffered severe pain. Plaintiff PATRICK CATANIA was urgently transported to Nassau University Medical Center located at 2201 Hempstead Turnpike, East Meadow, New York and was subsequently transported to North Shore Medical Center located at 104 Forest Avenue, Glen Cove, New York to undergo emergency surgery, medical care, hospital and medical treatment.

37. Plaintiff PATRICK CATANIA underwent months of physical therapy recovering from surgery removing the bullet and repairing the gunshot wound inflicted by Defendant ELLIS and is treating for his physical injuries with his doctors and emotional traumatic injuries with doctors associated with the New York City Crime Victims Office.

38. On or about October 22, 2020, Defendant ELLIS appeared before a Grand Jury for Attempted Murder in the Second Degree and Assault in the Second Degree. The Grand Jury indicted Defendant ELLIS on the charge of Assault in the Second Degree.

39. Upon information and belief, Defendant ELLIS was arrested and arraigned for said charge and is currently suspended without pay from his employment with Defendants.

AS AND FOR A FIRST CAUSE OF ACTION
Respondeat Superior/Vicarious Liability

40. Plaintiffs repeat and reallege each and every allegation set forth above with the same force and effect as if set forth fully herein.

41. At the time and place of the occurrence, Defendant ELLIS was acting in the scope of his employment. Defendant ELLIS had attended a New York City Police Event immediately prior to the occurrence.

42. As an NYPD Police Officer, Defendant ELLIS's acts, whether negligently or intentionally, were foreseeable and a natural incident of his employment.

43. At the time and place of the occurrence, Defendant ELLIS purported to act in self defense or with reasonable cause as an NYPD Police Officer within the scope of his employment.

44. At the time and place of the occurrence, Defendant ELLIS, acting within the scope of his employment and in the line of duty according to Defendant NYPD's Patrol Guide and based on his training and experience (or lack thereof) provided to him in the course of his employment, drew his weapon and fired at Plaintiff PATRICK CATANIA.

45. At the time and place of the occurrence, Defendant ELLIS's acts were committed in furtherance of Defendant NYPD's public services.

46. As of the date of the occurrence, Defendants CITY and NYPD knew and/or should have known of the Defendant ELLIS's prior history of excessive use of deadly force in the course of his employment resulting in personal injuries, civilian complaints and the filing of lawsuits.

47. As a result, Defendants CITY and NYPD are vicariously and/or strictly liable under the theory of *Respondeat Superior* because Defendant ELLIS was performing his duties and in disregard of the Patrol Guide requirements to only use deadly force in the amount necessary to protect human life and unless they have probable cause to believe they must protect themselves from imminent death or serious physical injury.¹¹

48. As a result, Defendant ELLIS's acts were reasonably foreseeable and preventable.

49. Defendants' failures, omissions and/or negligence proximately caused Plaintiffs injuries and/or damages.

50. By reason of Defendants' aforementioned acts, Plaintiff has suffered damages, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continued to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, Plaintiffs incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries and Plaintiffs have suffered and in the future will necessarily suffer additional loss of time and earnings from employment and will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to Plaintiffs' great damages.

51. By reason of the aforesaid occurrence and resulting injuries, Plaintiff PATRICK CATANIA was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character

¹¹ See 2014 NYPD PATROL GUIDE, USE OF FORCE [PROC. NO.] 203-11 (Effective Aug. 1, 2013).

and reputation, was prevented from attending his usual business and avocation, was injured in his reputation the community, and Plaintiffs have been otherwise damaged.

52. The aforesaid occurrence and resulting injuries to Plaintiffs, were due solely to the recklessness, carelessness and negligence of the Defendants herein.

53. The aforesaid occurrence took place through no fault or lack of care on the part of the Plaintiffs contributing thereto.

54. This action falls within one or more of the exceptions of Article 16, Sections 1600 through 1603 of the CPLR.

AS AND FOR A SECOND CAUSE OF ACTION
Negligent Hiring, Training, Supervision and Retention and Negligence *Per Se* on
Behalf of Defendants CITY and NYPD

55. Plaintiffs repeat and reallege each and every allegation set forth above with the same force and effect as if set forth fully herein.

56. Defendants hired, trained and/or supervised its police officers, personnel, staff and administrators, including and in particular, Defendant ELLIS.

57. Defendants failed to properly train and adequately supervise its police officers in the fundamental law of assault and battery and where an individual, especially Plaintiff, has not committed a crime and Defendant ELLIS had no rational basis to justify acts in self-defense or use deadly force.

58. Defendants breached their duty by failing to provide effective training, anti-assault, battery, use of excessive and/or deadly force and crime prevention policies and procedures to its police officers, and in particular Defendant Ellis for the safety of the public.

59. Defendants negligently employed police officers, personnel, staff and administrators and/or failed to properly hire, train and supervise its police officers, personnel, staff and/or administrators resulting in the assault and battery of Plaintiff PATRICK CATANIA on October 25, 2019.

60. Defendants breached their duty to provide for the effective use of excessive and/or deadly force training, policies and procedures to its police officers for the safety of the public.

61. Defendants negligently retained police officers, personnel, staff and administrators who were known and/or should have been known to need special attention, training and/or discipline given the prior complaints made against them.

62. At the time of the illegal conduct, Defendant ELLIS failed to abide by the NYPD Patrol Guide and/or committed acts of violence and/or use of excessive and/or deadly force that caused injury to Plaintiff PATRICK CATANIA as a civilian.

63. Defendants were negligent in hiring, training, supervising and retaining its police officers, personnel, staff and administrators, and in particular, Defendant ELLIS and breached their duty to properly protect and provide safety for Plaintiffs as a civilian.

64. The foregoing acts, omissions and systemic failures are customs and policies of Defendants which caused Defendant ELLIS to commit an unlawful assault and battery to Plaintiff PATRICK CATANIA, use excessive and/or deadly force against Plaintiff and physically and emotional abuse him under the belief that Police Officers suffer no disciplinary actions for their failure to take proper and prudent steps and violate the excessive and/or deadly force regulations.

65. By reason of Defendants' aforementioned acts, Plaintiffs have suffered damages, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continued to suffer serious and extreme mental

and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, Plaintiffs incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries and Plaintiffs have suffered and in the future will necessarily suffer additional loss of time and earnings from employment and will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to Plaintiffs' great damages.

66. By reason of the aforesaid occurrence, Plaintiff PATRICK CATANIA was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation the community, and Plaintiffs have been otherwise damaged.

67. The aforesaid occurrence and resulting injuries to Plaintiff were due solely to the recklessness, carelessness and negligence of the Defendants herein.

68. The aforesaid occurrence took place through no fault or lack of care on the part of the Plaintiffs contributing thereto.

69. This action falls within one or more of the exceptions of Article 16, Sections 1600 through 1603 of the CPLR.

AS AND FOR A THIRD CAUSE OF ACTION
Assault and Battery Against Defendant ELLIS

70. Plaintiffs repeat and reallege each and every allegation set forth above with the same force and effect as if set forth fully herein.

71. Defendant ELLIS intended to cause and did cause Plaintiff PATRICK CATANIA to suffer apprehension of an immediate harmful contact.

72. Defendant ELLIS's acts were done knowingly, willfully and with malicious intent, and Plaintiff PATRICK CATANIA is entitled to compensatory and punitive damages in an amount to be determined by proof at trial.

73. By reason of Defendant's aforementioned acts, Plaintiff PATRICK CATANIA has suffered damages, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, loss of consciousness, has suffered and continued to suffer serious and extreme mental and emotional anguish, fear, anxiety, panic, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, Plaintiffs incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries and Plaintiffs have suffered and in the future will necessarily suffer additional loss of time and earnings from employment and will be unable to pursue the usual occupation with the same degree of efficiency as prior to this occurrence, all to Plaintiffs' great damage.

74. By reason of the aforesaid physical assault and battery, Plaintiff PATRICK CATANIA was targeted by Defendant ELLIS, deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was subjected to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation the community and Plaintiff has been otherwise damaged.

75. The aforesaid occurrence and resulting injuries to Plaintiff PATRICK CATANIA, were due solely to the intentional, recklessness, carelessness and negligence of the Defendant herein.

76. The aforesaid occurrence took place through no fault or lack of care on the part of the Plaintiff PATRICK CATANIA contributing thereto.

77. This action falls within one or more of the exceptions of Article 16, Sections 1600 through 1603 of the CPLR.

AS AND FOR FOURTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

78. Plaintiffs repeat and reallege each and every allegation set forth above with the same force and effect as if set forth fully herein.

79. Defendants intentionally inflicted emotional distress upon Plaintiffs by allowing Defendant ELLIS to physically assault Plaintiff PATRICK CATANIA and use excessive force by Defendant ELLIS's discharging of his firearm and shooting Plaintiff in the chest.

80. Defendants knew and/or should have known that Plaintiffs would suffer extreme emotional distress and terror upon Plaintiff PATRICK CATANIA being viciously attacked without cause or warning, assaulted, battery and physically and emotionally abused and could cause injuries as described herein.

81. Defendant ELLIS's intentional conduct in physically assaulting Plaintiff as a law abiding citizen as he attempted to get in his vehicle on October 25, 2019 and resulting in Plaintiff feeling attacked, targeted, terrorized, shock, unsafe and in danger in public constitutes the intentional infliction of emotional distress upon Plaintiffs.

82. By reason of the foregoing, Plaintiffs have been severely and permanently damaged.

83. By reason of Defendant's aforementioned acts, Plaintiff has suffered damages, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, fear, anxiety, panic, great physical pain and emotional upset, has suffered and continued to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, Plaintiffs

incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries and Plaintiffs have suffered and in the future will necessarily suffer additional loss of time and earnings from employment and will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to Plaintiffs' significant damages.

84. By reason of the aforesaid physical assault and battery, Plaintiff PATRICK CATANIA was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation the community and Plaintiff has been otherwise damaged.

85. The aforesaid occurrence and resulting injuries to Plaintiff PATRICK CATANIA, were due solely to the intentional, recklessness, carelessness and negligence of Defendants herein.

86. The aforesaid occurrence took place through no fault or lack of care on the part of Plaintiffs contributing thereto.

87. This action falls within one or more of the exceptions of Article 16, Sections 1600 through 1603 of the CPLR.

AS AND FOR FIFTH CAUSE OF ACTION
Loss of Services

88. Plaintiffs repeat and reallege each and every allegation set forth above with the same force and effect as if set forth fully herein.

89. Plaintiffs NEIL CATANIA and PAMELA CATANIA are the parents of Plaintiff PATRICK CATANIA.

90. By the reasons of the foregoing, Plaintiffs NEIL CATANIA and PAMELA

CATANIA have been deprived of the services of their son, including but not limited to, his services, love, companionship, society and solace.

91. By reasons of the foregoing, Plaintiffs NEIL CATANIA and PAMELA CATANIA have incurred medical bills and costs as a result of Defendants' negligence and/or intentional acts. Plaintiffs were caused to incur expenses for hospital, medical bills and other related expenses.

WHEREFORE, Plaintiffs PATRICK CATANIA, NEIL CATANIA and PAMELA CATANIA respectfully request that this Court grant judgment for them and that it order and award them the following relief against Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and JUSTIN ELLIS, in his individual and official capacities, jointly and severally:

- (1) Compensatory damages for physical injuries, emotional pain and suffering, mental anguish, humiliation, loss of reputation and opportunity and permanent disability in an amount to be proved at trial, but believed to exceed the jurisdictional limits of this Court;
- (2) Liquidated damages in an amount to be awarded at trial;
- (3) Punitive damages in an amount to be awarded at trial;
- (4) Attorneys' fees, costs and disbursements;
- (5) Prejudgment interest; and
- (6) Such additional relief to Plaintiffs as the Court deems just and proper.

Dated: New York, New York
January 15, 2021

THE CLANCY LAW FIRM, P.C.

By: /s/ Donna H. Clancy

Donna H. Clancy, Esq.
40 Wall Street, 61st Floor
New York, New York 10005
(212) 747-1744
Attorneys for Plaintiffs
Patrick Catania, Neil Catania and Pamela
Catania

VERIFICATION

STATE OF NEW YORK)
 ss.:
 COUNTY OF NEW YORK)

Donna H. Clancy, an attorney at law, duly admitted to practice in the Court of the State of New York, affirms under the penalties of perjury, that:

I am the founding attorney of The Clancy Law Firm, P.C., attorneys of record for Plaintiffs PATRICK CATANIA, NEIL CATANIA and PAMELA CATANIA.

I have read the foregoing VERIFIED COMPLAINT and know the contents thereof, and upon information and belief, I believe the matters alleged therein to be true.

The reason this verification is made by deponent and not by the Plaintiffs is that the Plaintiffs reside in a County other than the one in which the Plaintiffs' attorneys maintain their office.

The source of deponent's information and the grounds for belief here are communications, papers, reports and investigations contained in the file.

Dated: New York, New York
 January 15, 2021

THE CLANCY LAW FIRM, P.C.

By: /s/ Donna H. Clancy

Donna H. Clancy, Esq.
 40 Wall Street, 61st Floor
 New York, New York 10005
 (212) 747-1744
Attorneys for Plaintiffs
Patrick Catania, Neil Catania and Pamela
Catania

SUPREME COURT OF THE STATE OF NEW YORK,
COUNTY OF NEW YORK

Index No.:

PATRICK CATANIA, NEIL CATANIA and PAMELA CATANIA,

Plaintiffs,

v.

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and JUSTIN
ELLIS, in his individual and official capacities,

Defendants.

SUMMONS and VERIFIED COMPLAINT

THE CLANCY LAW FIRM, P.C.

Attorneys for Plaintiffs
40 Wall Street – 61st Floor
New York, New York 10005
(212) 747-1744

To Service of a copy of the within
is hereby admitted.

Dated: -----20-----Attorneys for

PLEASE TAKE NOTICE:

NOTICE OF ENTRY

that the within is a (certified) true copy of an Order duly entered
in the office of the clerk of the within named court

NOTICE OF SETTLEMENT

that and order of which the within is a true copy will be presented for settlement to the HON.
one of the judges of the
within named Court, at

On 20 at M.
Dated,
Yours, etc.